

After filing this matter, the City sought information regarding Petitioner’s standing and demographer through discovery. (Egger Decl., ¶ 7 and Exh. F.) Petition moved for a protective order to protect the prospective plaintiff’s identity and characteristics based on alleged retaliation concerns. (Egger Decl., ¶ 8.) After the parties participated in an Informal Discovery Conference, Petitioner withdrew the motion and then produced documents identifying the individual’s identity, class membership, voter registration, and city residency. (Ibid.) The next month, the City paid Petitioner \$28,986.75 for her attorney’s fees. (Letourneau Dec., ¶¶ 4-5; Egger Decl., ¶ 11.)

The City obtained information about the demography expenses and deposed the alleged demographer. (Egger Decl., ¶ 12.) The City and Petitioner agreed to pay \$4,500 as full and final payment for the demographer expenses. (Egger Decl., Exh. K.)

#### ***Attorney’s Fees and the Safe Harbor Cap***

Petitioner argues that she is not limited by the safe harbor cap of Section 10010(f) because the City did not abide the safe harbor requirements. Petitioner does not show however that the City did not abide by the safe harbor requirements.

Under the “safe harbor” provision of section 10010(e)(3)(A)–(B), the City had 45 days to agree that it would change from at-large to district-based elections. During this period, no prospective plaintiff could bring a lawsuit under the CVRA. Petitioner here evidently delivered her letter requesting the elimination of the at-large election system on 6/16/23. (Jackson Decl., Exh. 2.) Petitioner claims the letter was sent by certified mail, but the letter itself states, “VIA HAND DELIVERY.” (Ibid.) At any rate, the City adopted the resolution declaring its intent to transition to district elections on 7/26/23 – i.e., 40 days after 6/16/23. (Jackson Decl., Exh. 3.) Thus, it appears that the City acted timely to avail itself of the safe harbor provision.

Section 10010 next provides that “a prospective plaintiff shall make the demand [for reimbursement for the cost of the work product generated to support the notice] in writing and shall substantiate the demand with financial documentation, such as a detailed invoice for demography services. A political subdivision may request additional documentation if the provided documentation is insufficient to corroborate the claimed costs.” (Elec. Code, § 10010(f.) Section 10010(f) also provides for the cap of \$30,000, which is to be adjusted based on the Consumer Price Index.

As discussed previously, the City requested additional documentation to substantiate the demand for reimbursement, but Petitioner did not provide this requested documentation until well after this lawsuit was filed and only after withdrawing Petitioner’s motion for a protective order seeking to avoid disclosing the prospective plaintiff’s identity and characteristics. (Egger Decl., ¶ 9.) The City paid Petitioner on 1/15/26 – i.e., within 45 days of receiving the information. (Letourneau Decl., ¶¶ 4-5, Egger Decl., Exh. 1.)

“Under California law, ‘each party to a lawsuit must pay its own attorney fees unless a contract or statute or other law authorizes a fee award.’ ([Citations]; Code Civ. Proc., § 1021.) Thus, unless specifically provided by statute or agreement, attorney fees are not recoverable.” (*K.I. v. Wagner* (2014) 225 Cal.App.4th 1412, 1420-1421; *Segal v. ASICS America Corp.* (2022) 12 Cal.5th 651, 666-667 [Attorney fees may be awarded only when they are recoverable as costs under Code of Civil Procedure section 1033.5, subdivision (a)(10)—that is, only when they are authorized by contract, statute, or law].)

Upon motion, a court may award attorneys' fees to a successful party against one or more opposing parties in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit, whether pecuniary or nonpecuniary, has been conferred on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the